

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:
Date Purchased:

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RONALDO LOZANO,

SUMMONS

Plaintiff,

Plaintiff designates Queens
County as the place of trial.

-against-

The basis of venue is:
Location of incident

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and P.O. HERNAN CONTRERAS,

The incident took place at:
Imperial Banquet Hall
124-11 Jamaica Avenue
Queens, New York

Defendants.

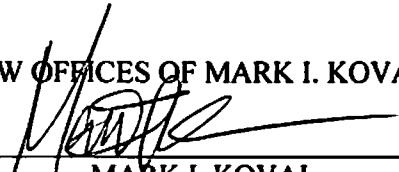
-----X County of Queens

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: April 18, 2017
Dix Hills, New York

LAW OFFICES OF MARK I. KOVAL

By: 

MARK I. KOVAL

Attorneys for Plaintiff
RONALDO LOZANO
6 Mona Lane
Dix Hills, New York 11746
(516) 661-3521

DEFENDANTS' ADDRESSES:

See Rider

RIDER

**THE CITY OF NEW YORK
ONE CENTRE STREET
NEW YORK, NEW YORK 10007**

**NEW YORK CITY POLICE DEPT.
c/o OFFICE OF THE COMPTROLLER
ONE CENTRE STREET
NEW YORK, NEW YORK 10007**

**P.O. HERNAN CONTRERAS
c/o NYC POLICE DEPARTMENT
OFFICE OF THE COMPTROLLER
ONE CENTRE STREET
NEW YORK, NEW YORK 10007**

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
RONALDO LOZANO,

Index No.:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and P.O. HERNAN CONTRERAS,

Defendants.

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Plaintiff, by his attorneys, LAW OFFICES OF MARK I. KOVAL, complaining of the
defendants, respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF**

1. At the time of the commencement of this action, plaintiff RONALDO LOZANO was and still is a resident of the County of Queens, City and State of New York.
2. This action falls within one or more of the exemptions set forth in CPLR 1602.
3. That the cause of action alleged herein arose in the County of Queens, City and State of New York.
4. That on April 28, 2016, and at all times hereinafter mentioned, defendant THE CITY OF NEW YORK was and still is a municipal corporation.
5. That prior hereto, and within the time prescribed by law, a sworn Notice of Claim on June 16, 2016, stating, among other things, the time when, the place where and the manner in which the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on THE CITY OF NEW YORK at the Offices

of the Comptroller and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. That on September 12, 2016, pursuant to General Municipal Law 50(h), a hearing was held at the Offices of the Comptroller.

7. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

8. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a foreign corporation duly authorized to do business in the State of New York.

10. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained its principal place of business in the County, City and State of New York.

11. That on April 28, 2016, and at all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was, and still is, a municipal corporation.

12. That prior hereto, and within the time prescribed by law, a sworn Notice of Claim on June 16, 2016, stating, among other things, the time when, the place where and the manner in which the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the NEW YORK CITY POLICE DEPARTMENT and that thereafter said defendant refused or neglected for more than thirty (30)

days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

13. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

14. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

15. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is a foreign corporation duly authorized to do business in the State of New York.

16. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, maintained its principal place of business in the County, City and State of New York.

17. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, maintained a police force known as the NEW YORK CITY POLICE DEPARTMENT.

18. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, controlled a certain police force known as the NEW YORK CITY POLICE DEPARTMENT.

19. Defendant P.O. HERNAN CONTRERAS was and is an agent, servant and/or employee of defendant NEW YORK CITY POLICE DEPARTMENT, and more specifically, employed by defendant THE CITY OF NEW YORK as a police officer.

20. At all times hereinafter mentioned, defendant P.O. HERNAN CONTRERAS was acting within the course and scope of his employment as a police officer with defendant THE CITY OF NEW YORK.

21. At all times hereinafter mentioned, defendant P.O. HERNAN CONTRERAS was acting within the course and scope of his employment as a police officer with defendant NEW YORK CITY POLICE DEPARTMENT.

22. On April 28, 2016, and at all times hereinafter mentioned, plaintiff, RONALDO LOZANO was in front of the premises known as Imperial Banquet Hall located at 124-11 Jamaica Avenue, in the County of Queens, City and State of New York.

23. On April 28, 2016, at approximately 11:00 p.m., defendant, P.O. HERNAN CONTRERAS, arrived at the premises located at 124-11 Jamaica Avenue, Queens, New York, and without provocation, falsely arrested, unlawfully imprisoned and unlawfully detained plaintiff ROLANDO LOZANO, and thus engaged in conduct which harmed the plaintiff and violated the Civil Rights of said plaintiff.

24. On April 28, 2016, while plaintiff, RONALDO LOZANO, was lawfully present at the aforesaid location, he was caused to be negligently, intentionally, wrongfully, willfully, physically and unlawfully detained, falsely arrested and unlawfully imprisoned by defendant, P.O. HERNAN CONTRERAS and was caused to sustain severe and permanent injuries.

25. The aforementioned occurrence took place due to the negligence of the defendants, their agents, servants, employees and/or licensees, acting within the scope of their authority, within the scope of their employment and in the furtherance of their agency.

26. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the defendants and their agents, servants, employees and/or licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the plaintiff to be willfully, maliciously and with gross negligence physically detained, falsely arrested and unlawfully imprisoned.

27. No negligence on the part of the plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

28. That by reason of the foregoing, plaintiff, RONALDO LOZANO, was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries, plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and as a result, plaintiff was and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss therefrom.

29. That as a result of the foregoing, plaintiff, RONALDO LOZANO, has been damaged in a sum which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF RONALDO LOZANO**

30. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "1" through "33", inclusive, contained herein as though same were more fully set forth at length herein.

31. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the defendants and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

32. The acts complained of herein constitute intentional infliction of emotional harm and distress.

33. The acts complained of herein were performed with malice and wilful intent and are beyond the bounds of a civilized society.

34. That by reason of the foregoing, plaintiff, RONALDO LOZANO, was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries, plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, plaintiff was and will continue to be rendered unable to perform her normal activities and duties and in consequence has sustained a loss therefrom.

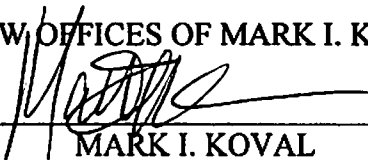
35. That as a result of the foregoing, plaintiff, RONALDO LOZANO, has been damaged in a sum which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this action.

WHEREFORE, plaintiff demands judgment against the defendants in the First Cause of Action in a sum which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this action; in the Second Cause of Action in a sum which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction over this action; together with the costs and disbursements of this action.

Dated: April 18, 2017
Dix Hills, New York

Yours, etc.

LAW OFFICES OF MARK I. KOVAL

By: 

MARK I. KOVAL

Attorneys for Plaintiff

RONALDO LOZANO

6 Mona Lane

Dix Hills, New York 11746

(516) 661-3521

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF SUFFOLK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state that:

1. I am the attorney of record for plaintiff RONALDO LOZANO in the within action.
2. I have read the foregoing VERIFIED BILL OF PARTICULARS and know the contents thereof. The same is true to my own knowledge, except as to those matters therein alleged to be on information and belief, and as to those matters I believe it to be true.
3. The reason this verification is made by me and not by the Plaintiff herein is because the Plaintiff does not reside in the County of Suffolk in which said law firm is located.
4. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: based on records and documents in deponents possession and conversations had with plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: April 18, 2017



MARK I. KOVAL

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

RONALDO LOZANO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and P.O. HERNAN CONTRERAS,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF MARK I. KOVAL
Attorneys for Plaintiff
6 Mona Lane
Dix Hills, New York 11746
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